

25NWCV00728 25NWCV00728

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Case Number: 25NWCV00728 Hearing Date: August 6, 2026 Dept: P

DICKSON v. FCI LENDER SERVICES, INC., ET AL.

CASE NO.: 25NWCV00728

HEARING: 08/06/2026 @ 9:30 AM

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TENTATIVE ORDER

I.

Defendants FCI Lender Services and Coastal Capital Group, LLC's motion to dismiss the first amended complaint as to Moving Defendants is GRANTED.

II.

The first amended complaint is DISMISSED with prejudice as to Defendants FCI Lender Services and Coastal Capital Group, LLC.

Moving party to give notice.

Defendants FCI Lender Services (FCI) and Coastal Capital Group, LLC (CCG) (collectively, Moving Defendants) move to dismiss with prejudice the first amended complaint (FAC) pursuant to Code of Civil Procedure section 581, subdivision (f)(2).

Background

On February 8, 2025, Plaintiff Gary Dickson (Plaintiff) filed a verified complaint against Defendants FCI, CCG, California TD Specialists (TD), PHH Mortgages (PHH), and Does 1 through 20. On Plaintiff filed a FAC against Defendants FCI, CCG, TD, PHH, Suresh Kamble, Suresh Kamble as Trustee of the Settler's Living Trust, and Does 1 through 20. This action concerns the real property known as 6049 Pennswood Avenue, Lakewood, CA, 90712 (Subject Property). (FAC, ¶ 17.) The FAC asserts six causes of action: (1) wrongful foreclosure against FCI, CCG, and TD, (2) injunctive relief against all defendants except Kamble, (3) violation of the California Homeowner Bill of Rights (HBOR) against FCI, CCG, and TD, (4) Unfair Fraudulent Business Practices (Business & Professions Code § 17200 et seq.) against FCI, CCG, and TD, (5) quiet title against FCI, CCG, TD, and Settler's Living Trust, and (6) elder abuse against Kamble.

On January 15, 2026, the Court sustained with 30 days leave to amend Moving Defendants' demurrer to the causes of action in the FAC alleged against them.

Legal Standard

"The court may dismiss the complaint as to that defendant when...after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." (Code Civ. Proc., § 581, subd. (f)(2).) "[N]o cases have held that a dismissal pursuant to section 581, subdivision (f)(2) may be without prejudice." (Cano v. Glover (2006) 143 Cal.App.4th 326, 329.)

Discussion

Moving Defendants move to dismiss the FAC with prejudice as to Moving Defendants only on the grounds that Plaintiff failed to file an amended pleading within the time permitted for leave to amend. This motion is unopposed.

On January 15, 2026, the Court heard Moving Defendants' demurrer to the FAC. The Court sustained the demurrer with 30 days leave to amend. (Order, 1/15/26.) Moving Defendants served a Notice of Ruling to Plaintiff via mail on January 28, 2026. (Hubbard Decl., ¶ 4.) Moving Defendants

show that Plaintiff failed to file an amended pleading within 30 days from the date of the 1/15/26 Order and from the date of service of the Notice of Ruling. As of the date Moving Defendants filed this motion, Plaintiff had not filed an amended complaint. (Hubbard Decl., ¶ 6.)

Based on the foregoing, dismissal with prejudice is warranted as to Plaintiff's claims against Moving Defendants pursuant to Code of Civil Procedure section 581, subdivision (f)(2) for failure to file an amended pleading in the time allotted for leave to amend.

Accordingly, Moving Defendants' motion to dismiss the FAC as to Moving Defendants is GRANTED. The first amended complaint is DISMISSED with prejudice as to Moving Defendants.